

IN THE LABOUR COURT OF SOUTH AFRICA
CAPE TOWN

MATTHEE
v
AFROCENTRIC HEALTH (RF) (PTY) LTD
& MEDSCHEME HOLDINGS (PTY) LTD

INDEX AND ANNEXURE BUNDLE
Statement of Claim — 9 April 2026
Rule 6, Rules for the Conduct of Proceedings before the Labour Court

Applicant	Wilbur William Matthee (Self-Represented)
Email	info@ethichawks.co.za
CCMA Cases	WECT23564-25 WECT24486-25
Concurrent Proceedings	Case No. 2026-077546
Date Filed	9 April 2026
Total Annexures	28 documents

INTRODUCTORY NOTE TO THE REGISTRAR AND RESPONDENTS

1. This Index and Annexure Bundle is filed together with the Statement of Claim by the Applicant, Wilbur William Matthee, in his self-represented capacity, pursuant to Rule 6 of the Rules for the Conduct of Proceedings before the Labour Court.
2. This bundle comprises 28 annexures, designated Annexures “A” through “Z”, “P1 RISK”, and “PDA BILL”. Each annexure is preceded by a divider tab identifying its reference designation, full description, date, and the Part of the Statement of Claim to which it relates.
3. The purpose of the divider tab system is to assist the Registrar, the presiding Judge, and the Respondents’ legal representatives in locating documents efficiently during proceedings. Any cross-reference in the Statement of Claim to an Annexure (e.g., Annexure “N”) may be resolved by locating the corresponding tab in this bundle.
4. All annexures are documents within the Applicant’s personal knowledge, obtained during his employment with the Second Respondent or from regulatory and judicial processes arising from that employment.
5. Where a document is redacted, the redaction is limited to the personal information of third parties (e.g., GEMS member identity numbers) consistent with the Protection of Personal Information Act 4 of 2013. No redaction has been applied to any information material to the issues in dispute.
6. Annexure “Z” (EthicHawks Master Chronological Register) constitutes a comprehensive forensic chronology of 148 material events from 11 January 2024 to 2 April 2026. It is commended to the Court as a navigational aid to the factual record.
7. The Applicant confirms that each document in this bundle is a true and accurate copy of the original, save where indicated to the contrary on the relevant divider tab.

MASTER INDEX OF ANNEXURES

Tab	Description	Relevance (Part)	Date
"A"	Interview invitations for 'Specialist: Care Manager' role	<i>Part C — Employment Relationship</i>	January 2024
"B"	Assessment instructions — Specialist: Care Manager	<i>Part C — Employment Relationship</i>	29 January 2024
"C"	Fingerprint criminal check booking confirmation	<i>Part C — Employment Relationship</i>	21 February 2024
"D"	Employment contract — 'Care Coordinator' (Grade B4M1)	<i>Part C — Employment Relationship</i>	9 April 2024
"E"	First Aider roster and EHS directives drafted by Applicant	<i>Part C — Employment Relationship</i>	25 July 2025
"F"	Sick note — Dr Jacques Malan (Akeso Stepping Stones Clinic)	<i>Part D — Mental Health / Disability</i>	1 April 2025
"G"	Mental health disclosure to Mapule Mashele (formal written notice of disability)	<i>Part D — Mental Health / Disability</i>	16 May 2025
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"I"	Payslip — July 2025 (R14,811.77 deduction; 40.47% of gross salary)	<i>Part E — Unlawful Salary Deduction</i>	July 2025
"J"	AOD Policy confirming 25% cap + "what is illegal?" exchange	<i>Part E — Unlawful Salary Deduction</i>	24 July 2025
"K"	"Wilma" Microsoft Teams message (screenshot, team-wide channel)	<i>Part F — Gender Identity Discrimination</i>	23 September 2025
"L"	Formal discrimination complaint lodged with HR	<i>Part F — Gender Identity Discrimination</i>	25 September 2025
"M"	Mashele investigation closure report ("typo" finding)	<i>Part F — Gender Identity Discrimination</i>	1 October 2025
"N"	Gexus/DMS root cause analysis and protected disclosure	<i>Part G — Protected Disclosures</i>	23 October 2025
"O"	Transcript — 31 October 2025 meeting (retaliatory admission by Jones)	<i>Part I — Retaliatory Intent</i>	31 October 2025
"P"	Formal grievance against Jones	<i>Part J — Institutional Silence</i>	2 November 2025
"Q"	Executive escalation bundle to leadership (32-page evidence bundle)	<i>Part J — Institutional Silence</i>	4 December 2025
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"U"	uFiling screenshot — 'No Information' for June 2025	<i>Part N — Post-Resignation Victimisation</i>	2026
"V"	Certificate of Service (disputed) + Naming Convention request	<i>Part N — Post-Resignation Victimisation</i>	January 2026
"W"	CMS referral — 'Administrative Misconduct and Ethical Failure'	<i>Part O — Regulatory Confirmation</i>	2026
"X"	SAHRC acknowledgment and referrals	<i>Part O — Regulatory Confirmation</i>	2026
"Y"	CCMA Certificates of Non-Resolution (WECT23564-25 and WECT24486-25)	<i>Part A — Jurisdiction</i>	9 January 2026
"Z"	EthicHawks Master Chronological Register (148 entries, 11 Jan 2024 – 2 Apr 2026)	<i>Part O — Regulatory Confirmation</i>	3 April 2026
"P1 RISK"	NQF Mandate / SAQA Statutory Obligation to Report (ELO mapping; qualification transcript)	<i>Part G — Protected Disclosures</i>	8 April 2026
"PDA BILL"	Protected Disclosures Amendment Bill, 2026 (Government Gazette, 8 April 2026)	<i>Preamble</i>	8 April 2026

ANNEXURE

“A”

Interview invitations for ‘Specialist: Care Manager’ role

Date: January 2024

Relevance: *Part C — Employment Relationship*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“B”

Assessment instructions — Specialist: Care Manager

Date: 29 January 2024

Relevance: *Part C — Employment Relationship*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“C”

Fingerprint criminal check booking confirmation

Date: 21 February 2024

Relevance: *Part C — Employment Relationship*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“D”

Employment contract — ‘Care Coordinator’ (Grade B4M1)

Date: 9 April 2024

Relevance: *Part C — Employment Relationship*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“E”

First Aider roster and EHS directives drafted by Applicant

Date: 25 July 2025

Relevance: *Part C — Employment Relationship*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“F”

Sick note — Dr Jacques Malan (Akeso Stepping Stones Clinic)

Date: 1 April 2025

Relevance: *Part D — Mental Health / Disability*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“G”

Mental health disclosure to Mapule Mashele (formal written notice of disability)

Date: 16 May 2025

Relevance: *Part D — Mental Health / Disability*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“H”

Jones: “we do not apply staggering of money owed”

Date: 16 April 2025

Relevance: *Part D — Mental Health / Disability*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“I”

Payslip — July 2025 (R14,811.77 deduction; 40.47% of gross salary)

Date: July 2025

Relevance: *Part E — Unlawful Salary Deduction*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“J”

AOD Policy confirming 25% cap + “what is illegal?” exchange

Date: 24 July 2025

Relevance: *Part E — Unlawful Salary Deduction*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“K”

“Wilma” Microsoft Teams message (screenshot, team-wide channel)

Date: 23 September 2025

Relevance: *Part F — Gender Identity Discrimination*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“L”

Formal discrimination complaint lodged with HR

Date: 25 September 2025

Relevance: *Part F — Gender Identity Discrimination*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“M”

Mashele investigation closure report (“typo” finding)

Date: 1 October 2025

Relevance: Part F — Gender Identity Discrimination

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“N”

Gexus/DMS root cause analysis and protected disclosure

Date: 23 October 2025

Relevance: *Part G — Protected Disclosures*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“O”

Transcript — 31 October 2025 meeting (retaliatory admission by Jones)

Date: 31 October 2025

Relevance: *Part I — Retaliatory Intent*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“P”

Formal grievance against Jones

Date: 2 November 2025

Relevance: *Part J — Institutional Silence*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“Q”

Executive escalation bundle to leadership (32-page evidence bundle)

Date: 4 December 2025

Relevance: *Part J — Institutional Silence*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“R”

Employer’s opposing affidavit — CCMA (Xolile Vincent Manyathi)

Date: 10 December 2025

Relevance: *Part K — Bad-Faith Affidavit*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“S”

Resignation letter

Date: 11 December 2025

Relevance: *Part L — Constructive Dismissal*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“T”

CPUT Postgraduate Diploma in Occupational Health Nursing — acceptance letter

Date: 2026

Relevance: *Part M — Career Destruction*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“U”

uFiling screenshot — ‘No Information’ for June 2025

Date: 2026

Relevance: *Part N — Post-Resignation Victimisation*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE



Certificate of Service (disputed) + Naming Convention request

Date: January 2026

Relevance: *Part N — Post-Resignation Victimisation*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“W”

CMS referral — ‘Administrative Misconduct and Ethical Failure’

Date: 2026

Relevance: *Part O — Regulatory Confirmation*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“X”

SAHRC acknowledgment and referrals

Date: 2026

Relevance: *Part O — Regulatory Confirmation*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“Y”

CCMA Certificates of Non-Resolution (WECT23564-25 and WECT24486-25)

Date: 9 January 2026

Relevance: *Part A — Jurisdiction*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“Z”

EthicHawks Master Chronological Register (148 entries, 11 Jan 2024 – 2 Apr 2026)

Date: 3 April 2026

Relevance: *Part O — Regulatory Confirmation*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“P1 RISK”

NQF Mandate / SAQA Statutory Obligation to Report (ELO mapping; qualification transcript)

Date: 8 April 2026

Relevance: *Part G — Protected Disclosures*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy

ANNEXURE

“PDA BILL”

Protected Disclosures Amendment Bill, 2026 (Government Gazette, 8 April 2026)

Date: 8 April 2026

Relevance: *Preamble*

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd
Statement of Claim — 9 April 2026 | EthicHawks Forensic Governance Consultancy